

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S. Mishra

Hon'ble Vineet Saran, J.

Hon'ble Ran Vijai Singh, J.

It is being informed that Sri H.P. Dube now appears for respondents no. 3.

List this case in the next cause list showing his name as counsel for the respondent.

Order Date :- 6.7.2010

Pratima

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S. Mishra

Hon'ble Vineet Saran, J.

Hon'ble Anil Kumar, J.

It is informed by the learned counsel for the petitioner that Sri V.S. Misra learned, counsel for respondent no.3 is no longer counsel for the Corporation.

Issue notice to opposite party no.3 fixing a date immediately after six weeks.

All the opposite parties, including the opposite parties no. 1 and 2, who are represented through Standing Counsel, may file counter affidavit by the next date of listing.

Order Date :- 13.7.2010

dk/-

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S.Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Office has submitted report that no steps for service on respondent no.3 has been taken. Learned counsel for the petitioner has submitted that since Shri H.P. Dube, learned counsel has accepted notice on behalf of respondent no.3, whose name has also been shown in the cause list, no further steps are required to be taken for respondent no.3. List again in the next cause list.

Order Date :- 7.9.2010

Anupam

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S. Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sarvsi Sachindra Mohan, T.N. Tiwari and H.P. Dubey, Advocates have sent illness slip today.

The case is passed over for the day.

List in the next cause list.

Order Date :- 20.11.2010

piyush

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S. Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sri Pankaj Dubey holding brief for Sri H.P. Dubey, learned counsel for the respondent no. 3 and the learned Standing Counsel appearing for the respondent nos. 1 and 2 pray for and are granted four weeks' and no more further time for filing Counter Affidavit.

Rejoinder Affidavit may be filed within three weeks thereafter.

List after the expiry of the aforesaid period.

Order Date :- 21.12.2010

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Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C., V.S. Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sri T.N. Tiwari, learned counsel for the petitioner prays for and is granted three weeks' time for filing Rejoinder Affidavit in reply to the Counter Affidavit filed on behalf of the respondent No.3.

List thereafter.

Order Date :- 22.2.2011

piyush

Court No. - 35

Case :- WRIT - C No. - 10681 of 2004

Petitioner :- Anil Shastri

Respondent :- State Of U.P. Thru. Principal Secy. Power & Others

Petitioner Counsel :- Sachindra Mohan

Respondent Counsel :- C.S.C.,V.S.Mishra

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

We have heard learned counsel for the petitioner. Learned standing counsel appears for the State respondents. Sri H.P. Dubey appears for the U.P. Power Corporation.

The petitioner claims to be Secretary of Gurjar Chhatra Sahayak Samiti - a Society registered under the Societies Registration Act. He was found to be committing theft of electricity by putting a cable on the distribution line of the Corporation directly. A provisional assessment, for a sum of Rs.48,735/- was made, as a theft case, and a revenue assessment was made calling upon the petitioner to deposit a sum of Rs.39,064/-.

It is stated in the counter affidavit that during course of audit, it was detected that the assessment ought to have been made on the basis of structural formula as contemplated in the U.P. Electricity Supply Code 2002, and as such a revised assessment for balance amount of Rs.9,716/-, as difference of amount, was issued on 7.8.2003. Thereafter recovery certificate was issued on 29.11.2003 under Section 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act 1958 to the Assistant Collector for realization of a sum of Rs.48,760/- as arrears of land revenue towards the total of first assessment order and the revised assessment order.

The writ petition was filed with the allegation that the bill of Rs.2,26,888/- was sent to the Society. The Society approached the respondent No.3 that the same was not payable by it. The bill dated 15.6.2002, was corrected, and paid by the Society on 18.9.2002. The total amount paid was Rs.51,296/-.

The petitioner being Secretary of the Society, was paying electricity dues on behalf of the Society regularly. On 8.2.2004, Amin came to the house of the petitioner, and informed him that a sum of Rs.48,780/- is to be recovered from the petitioner, on which the writ petition was filed.

We find substance in the contention of the learned counsel appearing for the U.P. Power Corporation that the writ petition was filed concealing the fact that on an inspection made of the institution run by the petitioner. The petitioner was found taking supply of electricity illegally by putting a cable on the distribution line of the Corporation directly. The process of user was LMV-2 category. The checking report was prepared at the site. The bill for Rs.48,735/- was by way of provisional assessment in the theft case. Since the demand notice, with respect to the earlier assessment to the tune of Rs.39,064.20 was already issued, a revised demand notice purportedly under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act 1958 was issued to the petitioner to deposit a sum of Rs.9,738/- as difference of assessment. The total demand made was for Rs.48,760/-.

A 'consumer'; is defined under Section 2 (15) of the Electricity Act 2003 and the definition has been followed in the U.P. Electricity Supply Code, 2005 to mean any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the words of a licensee, the Government or such other person, as the case may be .

A 'person' is defined under Section 2 (4) of the Electricity Act 2003, to include any company or body corporate or association or body of individuals, whether incorporated or not, or artificial juridical person.

The 'occupier' in clause 2.2. (oo) of U.P. Electricity Supply Code 2005, means the owner or authorized person in occupation of the premises where energy is used or proposed to be used.

A registered Society is a 'person' within the meaning of

Section 2 (49) of the Electricity Act 2003, and the petitioner representing the Society as Secretary and occupier of the premises of the electrical connection installed for which the electricity was drawn, is liable to pay the amount to the Power Corporation.

The writ petition is **dismissed**.

Order Date :- 4.7.2011

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